



SELECTBOARD
TOWN OF WESTHAMPTON
TOWN HALL
1 SOUTH ROAD
WESTHAMPTON, MASSACHUSETTS 01027

Minutes of September 27, 2021
Meeting held via ZOOM

The meeting convened at ~~7:00~~6:30 p.m.

Present from Selectboard were Phil Dowling (Chair), Maureen Dempsey, Teri Anderson (joined at 7pm).

Others present were Bill Jablonski (Highway Superintendent), Douglas Finn, Marilyn Witherell, Adam Cortis, Lynn Fornier, John Zimmerman, Morley Cleary, Robbie Armenti (Board of Health), Jessica Lermen (Conservation Commission), Leo Aloisi.

Minutes taken by Cheryl Provost.

- Interview with Douglas Finn for Administrative Assistant. Maureen provided an update from screening committee related to their selection of Douglas. Phil opened interview to questions from board. Cheryl provided job information. Phil and Cheryl answered questions from Douglas. Concluded interview.
- Department updates
 - Highway Department, Superintendent Bill Jablonski reported:
 - Chapter 90 Project Request
 - mowing roadsides with two mowers
 - last week all town vehicles completed state inspection
 - removed window grates and basketball hoops from town hall
 - 2009 F350 failed inspection, motor failed emissions

Phil motioned to approve Chapter 90 Project for \$30,600.00 to crack seal 5,280 feet of Easthampton Road and 5,280 feet of Route 66 (Main Road). Second by Maureen. So moved by roll call vote:

Teri-yes

Maureen-yes

Phil-yes

- Public Safety Complex update, Phil reported concrete work is completed. Drainage system under progress.
- Board of Health, Robbie Armenti reported:
 - The board recommends continued mask wearing in town buildings, not adding other public buildings.
 - The board accepts Selectboard recommendations for town hall use of masks and distancing
 - working with kestrel on Green Burial

Commented [ta1]: Delete. This is from last meeting. See below for new updates by Robby.

Robbie provided updates from Westhampton Connects of the art event on September 25.

- Town Property and Energy Assessment Committee, Phil reported on behalf of committee there are projects in line. The door installation at the town hall is complete. Looking at projects at the elementary school.
- Phil reported he's working on MEI Green Communities reports
- Administrative Assistant Search Committee, Maureen reported the committee interviewed two candidates and advanced Douglas to Selectboard, another candidate withdrew due to commute, and another candidate was unresponsive.

Reviewed interview with Douglas Finn. Phil motioned to offer the position of Administrative Assistant to Douglas Finn. Second by Teri. So moved by roll call vote:
Maureen-yes
Teri-yes
Phil-yes

Motion by Teri to authorize Phil to contact Douglas Finn with offer and approve a letter of offer. Second by Maureen. So moved by roll call vote:
Maureen-yes
Teri-yes
Phil-yes

- Board of Health, additional updates, Robbie Armenti reported:
 - there is one Covid case in town and the trend is up in the district.
 - reviewed Halloween proposal from Lynn Fornier and Caralyn Whipple. Phil motioned to approve the recommendations of the Board of Health for the Halloween activities.Second by Teri. So moved by roll call vote:
Maureen-yes
Teri-yes
Phil-yes

Teri thanked the Administrative Assistant Search Committee for their work and time.

- Review of electronic communications policy. Phil motioned to approve the electronic communications policy as written. Second by Maureen. So moved by roll call vote:
Teri-yes
Maureen-yes
Phil-yes

Review of telecommuting policy. Phil motioned to adopt remote work and telecommuting policy as revised. Second by Maureen. So moved by roll call vote:
Teri-yes
Maureen-yes
Phil-yes

- Fall Festival, Morley Cleary reported the committee made the decision to cancel the festival rather than hold a trimmed down version. Also cancelled the bike race. Cow pie bingo will be held virtually.

- Reviewed Tag sale permit requests:

Marilyn Witherell, 215 Main Road to renew permit another 30 days. Phil motioned to extend the tag sale permit to Marilyn Witherell for 30 days effective October 2. Second by Maureen. So moved by roll call vote:

Maureen-yes

Teri-yes

Phil-yes

Amanda and James Kemper, 71 Northwest Road. Phil motioned to extend the tag sale permit to Amanda and James Kemper for 30 days effective October 2. Second by Maureen. So moved by roll call vote:

Maureen-yes

Teri-yes

Phil-yes

Margot Cleary, 180 Southampton Road. Phil motioned to extend the tag sale permit to Margot Cleary for 30 days effective October 2 Second by Maureen. So moved by roll call vote:

Maureen-yes

Teri-yes

Phil-yes

- American Recovery Act, Phil Dowling reported there are no updates.
- Scheduled pole hearings for October 12:
6:30 for 48 Stage Road
6:45 for Loudville Road from intersection of Main Road to Mineral Road
- Reviewed request authorizing KPLaw to take a passive role in defending the town in appeal filed on decision of Zoning Board of Appeals. Phil motioned to authorize KPLaw to take a passive role in defending the town in the matter Maureen McMahon and Eve Andrade vs. Jesse Fortier and Westley Fortier D/B/A Rock Valley Heating and Air Conditioning, Rock Valley Heating and Air Conditioning, Inc., North Country Properties, LLC, Westhampton Zoning Board of Appeals. Second by Teri. So moved by roll call vote:
Maureen-yes
Teri-yes
Phil-yes
- Phil motioned to accept the precinct boundaries as listed. Second by Teri. So moved by roll call vote:
Maureen-yes

Teri-yes
Phil-yes

Phil acknowledged inquiries received regarding when in person Selectboard meetings will resume. He made no recommendation as to when the Selectboard will meet in person but proposed researching systems for hybrid meetings. Teri recommended the OWL [camera/speaker/microphone](#) system and use of CARES funds to purchase the system. Phil will work with Cheryl to put together a proposed plan.

- Public Hearing continuation opened at 8:00 pm to consider first right to purchase land held under Chapter 61A at 188 North Road, owned by Leo and Anita Aloisi. Teri explained when the hearing commenced 2 weeks ago the board was looking for explanation if remaining land will continue as Chapter 61 Classification. Leo Aloisi since submitted an affidavit stating so. He reported remaining land includes 148 acres. Discussion opened to public. No comments. The hearing closed at 8:05 p.m.

Teri motioned that the Selectboard approve the request to separate the Strawbale Café from property owned by Leo W. Aloisi and Anita J. Aloisi and not exercise their Right of First Refusal to purchase as defined in Notice of Intent to Sell Land Held Under Chapter 61A, Section 14, with understanding remaining land will remain under Chapter 61A as stated in affidavit dated September 9, 2021 and on file in the office of the Selectboard. Second by Phil. So moved by roll call vote:

Maureen-yes
Teri-yes
Phil-yes

Teri asked for a review of procedure. She does not see a need to have a formal public hearing unless the board plans to exercise the right of first refusal. The most important part of the decision-making is to have an affidavit describe the parcels to be separated and taken out of Chapter 61 classification and any remaining land in Chapter 61 in order to make an informed decision and have a legal document verifying the plan. She will provide procedural information and section of Mass General laws related to the process.

- Correspondence reviewed:
 - Accepted resignation of Police Sergeant Floyd Fisher effective January 2, 2022
 - Department of Telecommunications and Cable notice of cable television license October 15, 2024; procedures for renewal
 - Alcoholic Beverages Control Commission 2022 renewal information and forms. Cheryl reported Jeff Morse submitted the renewal for Outlook Farm on September 24, ahead of the due date of November.
 - report of speeding from Margot Cleary and follow up from John Bowler. A reply will go to John

Bowler that the police department is conducting speed studies using the speed sign in various locations to determine problem areas.

Reviewed minutes of:

September 13, 2021. Approved amendments from Teri. Phil motioned to approve minutes as amended.

Second by Maureen. So moved by roll call vote:

Teri-yes

Maureen-yes

Phil-yes

Warrants were reviewed and approved by roll call vote:

Maureen-yes

Teri-yes

Phil-yes

Payroll: \$89,846.60

Vendor: \$97,182.64

Next meeting: 6:30 p.m., October 12, 2021

Adjourned meeting at 8:18 p.m.

Approved by vote of the Selectboard at virtual meeting held October 12, 2021.

Phil Dowling

Maureen Dempsey

Teri Anderson